

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. DRISKILL

CASE NUMBER: 25CVG-02662

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. Plaintiff Portfolio Recovery Associates, LLC opposes the Motion.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 7, 2026, to Plaintiff and Counsel for failure to appear at the July 27, 2026 hearing. A response to the OSC has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. The Court confirms today’s review hearing set for 9:00 a.m.

WELLS FARGO BANK, N.A. VS. PANGELINA

CASE NUMBER: 25CVG-02656

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A., seeks an order deeming admitted the truth of matters specified in Plaintiff’s Request for Admissions, Set One, which was served on Defendant Sandra Pangelina by mail on June 29, 2026. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare*